



2025:AHC:184241-DB

HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 35860 of 2025

Kais Khan

.....Petitioner(s)

Versus

State Of U.P. And 4 Others

.....Respondent(s)

Counsel for Petitioner(s)	: Arvind Kumar Verma, Maohammd Nadeem
Counsel for Respondent(s)	: C.S.C., Manu Ghildyal

Court No. - 3

**HON'BLE SAUMITRA DAYAL SINGH, J.
HON'BLE INDRAJEET SHUKLA, J.**

1. Heard Shri Arvind Kumar Verma, learned counsel for the petitioner, Sri Manu Ghildyal, learned counsel for respondent corporation and learned Standing Counsel for the State.
2. Challenge has been raised to the impugned order dated 16.02.2024 and Recovery Citation dated 30.04.2025 seeking to recover Rs. 90,991/- from the petitioner towards electricity dues.
3. Presently, it is not clear if assessment procedure has been fully complied. Petitioner claims no opportunity of hearing was given to him before the impugned demand came to be created.
4. In view of such facts, no useful purpose may be served in keeping such a petition pending or calling for counter affidavit at this stage. To the extent petitioner may not have been given opportunity of hearing, it is desirable that one opportunity is given to the petitioner before the Assessing Officer/respondent concerned under Clause 6.8 of the U.P. Electricity Supply Code, 2005.
5. Accordingly, writ petition is disposed of with a direction, subject to the petitioner depositing Rs. 10,000/- towards the disputed demand within a period of one month, he may file appropriate application before respondent concerned within a further period of one week therefrom. Subject to such compliance, respondent concerned may proceed to deal with and decide petitioner's objection by a reasoned and speaking order, strictly in accordance with law, after confronting the petitioner with all

adverse material being relied against the petitioner and by giving opportunity of personal hearing as expeditiously as possible, preferably within a period of two months from the date of application being filed by the petitioner.

6. The amount to be deposited shall remain subject to final order that may be passed, in compliance of this order.

(Indrajeet Shukla,J.) (Saumitra Dayal Singh,J.)

October 14, 2025

Pratima